

complaint:

- 1) Saucedo's answer to the complaint will be deemed an answer to the first amended complaint.
- 2) Saucedo is given leave of court to file an amended cross-complaint by March 30, 2026.
- 3) Plaintiff Andrea Smith shall pay Defendant Greg Munro \$1,000 within 30 days.
- 4) Plaintiff Andrea Smith shall serve amended verified discovery responses to all discovery previously responded to by Robinson within 30 days.

5. 9:00 AM CASE NUMBER: C24-02966
CASE NAME: YUE REN VS. GAUTAM PATIL
***HEARING ON MOTION IN RE: MOTION TO STRIKE DEFT CROSS-COMPLAINT**
FILED BY:
TENTATIVE RULING:

In light of Cross-Complainant filing a First Amended Cross Complaint, the Demurrer and Motion to Strike the original Cross-Complaint are moot.

6. 9:00 AM CASE NUMBER: C24-02966
CASE NAME: YUE REN VS. GAUTAM PATIL
HEARING ON DEMURRER TO: DEFT CROSS-COMPLAINT
FILED BY:
TENTATIVE RULING:

In light of Cross-Complainant filing a First Amended Cross Complaint, the Demurrer and Motion to Strike the original Cross-Complaint are moot.

7. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO JOHN MUIR HEALTH'S FORM INTERROGATORIES, SET ONE**
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Defendant John Muir Health (JMH) moves to compel further responses from Plaintiff Deja Jones to Form Interrogatories, Set One. The motion exclusively addresses Plaintiff's failure to submit anything beyond boilerplate objections to Form Interrogatory 17.1, which seeks factual bases for denials of JMH's Requests for Admission. JMH filed its motion on September 22, 2025. On February 20, 2026, Jones filed a declaration demonstrating that she had, as of October 8, 2025, served supplemental responses to the Interrogatory in question. JMH has many questions regarding the identity of various potential plaintiffs and "nominal defendant." JMH still complains that Plaintiff's responses are insufficient, lacking the requisite detail to comply with requirements.

The original responses from Plaintiff were clearly insufficient; it appears that Plaintiff has now somewhat complied. The Court recognizes that Defendant made many efforts to moot the motion by attempting to meet and confer, and Plaintiff, while not being wholly unresponsive, failed to make sufficient efforts either to comply with discovery or to engage substantively in the meet and confer process. Defendant did not seek sanctions in their motion and Plaintiff did not “unsuccessfully . . . oppose[the] motion.” While the Court agrees that the discovery responses—failing to give addresses or identify documents—remain deficient, given the confusion regarding the proper Plaintiff, it is not clear without further discussion how to remedy the failure.

Parties to appear. Counsel for Plaintiff is ordered to be prepared to make representations regarding amendment of the Complaint if it is necessary and amendment of discovery, including verification.

8. 9:00 AM CASE NUMBER: C25-00347
CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
***HEARING ON MOTION IN RE: ON PLEADINGS**
FILED BY: KNOTH, THOMAS JAMES
TENTATIVE RULING:

Defendant Thomas Knoth moves “for an order dismissing this action based solely on pleadings.” He purportedly bases this motion on “Federal Rule of Civil Procedure 12(c).” He then argues that judgment should be entered because the complaint was not timely served on all defendants, pursuant to California Rule of Court 3.110. The Court did not receive a timely opposition.

Defendant appears to properly identify the issue that Plaintiff has failed to comply with rules of service. Plaintiff additionally appears to have failed to make any efforts in this case, not filing a Case Management Conference statement prior to the October Case Management Conference, nor meeting and conferring in advance of that CMC. It would appear that Plaintiff has abandoned this case.

The problem, however, is that Defendant seeks the assistance of inapplicable standards—federal rules in a state court case—and the wrong remedy. While CCP 3.110 does identify the timing for service, the remedy is that the Court must issue an Order to Show Cause to Plaintiff as to why sanctions should not issue.

The Court will therefore issue the required OSC. Sanctions up to and including terminating sanctions may be appropriate, particularly if Plaintiff has abandoned this matter. Given, however, that a valid Motion to Compel Arbitration is being heard contemporaneously with this Motion, Defendant may elect alternate remedies. If Defendant wishes to proceed with arbitration forthwith, he may withdraw this motion and proceed accordingly. Both parties are ordered to appear at the hearing on March 5, 2026 for Defendant to notify the Court how he would like to proceed.

9. 9:00 AM CASE NUMBER: C25-00347
CASE NAME: JONATHAN COTHAM VS. THOMAS KNOTH
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KNOTH, THOMAS JAMES
TENTATIVE RULING: